Land adj. 1 Cleethorpes Avenue - pre-app response pack

Shaeba Nokhbehrousta [ADDRESS] · nshaeba@yahoo.com [DATE]

Katie Raw, Planning Officer, Area Team (katie.raw@manchester.gov.uk) cc Andrew Peek, Manchester City Council Pre-application ref: [TO BE CONFIRMED]

Land adjacent to 1 Cleethorpes Avenue, Blackley, M9 8JT (fronting Sandyhill Road) – response to your advice on my enquiry of 18 August 2026

Dear Ms Raw,

Thank you for your reply to my enquiry. I approached Planning on the advice of Property Transactions, and I am interested in buying the land. I accept that the earlier drawings were not adequate and that the case for this site has not yet been made. I am not asking you to take the site's suitability on trust: I am commissioning a measured survey and will show the evidence. Where a test may fail, I say so below. I would like a second pre-application meeting on the basis of a revised, smaller scheme, not a full application.

1. Inaccurate drawings. Agreed. The earlier sheets were indicative only, mis-oriented and not based on a survey. All drawings will be scaled 2D CAD drawings by [ARCHITECT/SURVEYOR], with no computer-generated imagery. Orientation corrected: with the main elevation facing Sandyhill Road, Cleethorpes Avenue is on the **right**. The red line will follow the surveyed boundary.

2. No site plan. A location plan (1:1250) and existing and proposed block plans (1:200) will be provided, showing north point, boundary dimensions, roads, neighbours' footprints, parking, any private outdoor space, bin and cycle stores and distances to No.1's side elevation. See schedule enclosed.

3. Levels. I accept that the fall across the plot may be significant. A topographical survey ([DATE – TO BE SURVEYED]) will give existing and proposed levels, finished floor level, retaining walls, two sections (across the Sandyhill Road frontage and north–south through No.1) and a cut-and-fill estimate. If the survey shows substantial earthworks, the house will be stepped with the slope. If it cannot be accommodated without major retaining structures, I will say so.

4. Building line. I will measure the front building line of the neighbouring houses on Sandyhill Road and draw it. I will set the proposed front wall back to align with it, or justify any difference. Aligning will reduce plot depth and floor area; the revised scheme is sized to the aligned line. Your email refers to properties "to the east of Sandyhill Road"; I will measure the houses both east and west of the plot (including the adjoining houses to the west) and show both lines.

5. Impact on No.1. [STATE THE RELATIONSHIP: No.1 is owned by [NAME – the applicant / a person connected to the applicant]. This gives access to the side windows and the rooms they serve for measurement and photographs. It does not remove the Council's duty to assess amenity for any occupier, and I do not rely on it as a reason to approve.] I will identify the two side windows you mention and the rooms they serve, state separation distances, and test daylight (25-degree test and Vertical Sky Component) and sunlight (annual and winter probable sunlight hours) against BRE 209, with overshadowing diagrams. I recognise that a house to the south of No.1 may well reduce light to windows facing it. If the tests fail, I will not claim there is no harm: the house will be reduced in height or footprint and moved away from No.1, and re-tested. The original 4-bedroom concept is withdrawn and replaced by a smaller two-storey 2-bedroom house, sited at the west end of the plot on the neighbours' building line, with a lower ridge and a gap beside No.1, parking in front. If the tests still fail, I will reduce it to a single-storey house or not proceed.

6. Character. A street-scene elevation along Sandyhill Road, with neighbouring houses to scale, and a short analysis of their form, height, roof type, materials and plot width, will show how the proposal relates to them.

7. Space standards. Intended occupancy is 2 bedrooms, 4 persons (2b4p, minimum 79 m² GIA over two storeys). Every bedroom and the total GIA will be checked against the Nationally Described Space Standard in a table. I note that the earlier bedrooms 2–4 (about 9.3 m²) were single rooms and did not support a six-person label.

8. Principle. A short planning statement will address land history and Council ownership, infill housing and design policy, highways and parking, amenity, trees and biodiversity net gain. Please tell me which policy documents you would like it to be tested against, and whether you would like your response shared with Property Transactions, who asked me to seek Planning's comments before any sale is considered.

Next step. Please confirm that a second pre-application on this basis is acceptable, and any further information you want at that stage. I will submit the full set only once the survey and the daylight tests are complete. If the evidence shows the site cannot support a dwelling without unacceptable harm, I will tell you.

Yours sincerely,

Shaeba Nokhbehrousta

Enc: drawing schedule; cover note

Cover note – request for a second pre-application meeting

Site: Land adjacent to 1 Cleethorpes Avenue, Blackley, Manchester M9 8JT (fronting Sandyhill Road) Pre-application ref: [TO BE CONFIRMED] From: Shaeba Nokhbehrousta Date: [DATE]

This is a request for a second pre-application opinion. It is **not** a planning application.

Enclosed 1. Response letter answering the eight points in your reply to my enquiry of 18 August 2026. 2. Drawing schedule. 3. Topographical survey (00) and sheets 01–08 and 12: [DELETE ANY NOT READY].

Scheme for discussion The first concept is replaced. The scheme for discussion is a two-storey 2-bedroom, 4-person house at the west end of the plot, on the neighbours' building line, with a lower ridge, a gap beside No.1 and parking in front. Fallback: single-storey, or no development, if the BRE 209 tests or the survey show it cannot work.

What I would like from the meeting - Your view on whether the reduced scheme overcomes the concerns about levels, building line and the two side windows of No.1. - Which policies and standards you want the planning statement tested against. - Highways comments on access from Sandyhill Road near the Cleethorpes Avenue junction. - Whether the Council's Property Transactions team needs to be involved at this stage.

Not yet available (see assumptions table): [LIST ANY OUTSTANDING ITEMS, e.g. daylight report, BNG baseline].

Shaeba Nokhbehrousta · [PHONE] · nshaeba@yahoo.com

Drawing schedule – Land adj. 1 Cleethorpes Avenue / Sandyhill Road, M9 8JT

Issue: second pre-application (not a full planning application). All sheets: scaled 2D CAD, no AI or rendered images. North point on every plan. Orientation: Sandyhill Road along the south edge, Cleethorpes Avenue on the RIGHT (east), No.1 to the north. (North-up is taken from the aerial; confirm on survey.)

No.	Sheet	Scale	Size	Depends on	Status
00	Topographical & boundary survey (surveyor) incl. No.1 side-elevation windows, trees, kerb/road levels	1:100 / 1:200	A1	–	**Commission**
01	Location plan, red line to surveyed boundary (blue line if other land)	1:1250	A4	00	To do
02	Existing site/block plan with levels, neighbours' footprints, distances to No.1	1:200	A3	00	To do
03	Proposed block/site plan: dimensions to all boundaries, front parking, any private outdoor space (or the justification for none), bins, cycles, front wall on building line	1:200	A3	00, 08	To do
04	Existing levels plan (spot heights, contours)	1:200	A3	00	To do
05	Proposed levels, FFL, retaining walls	1:200	A3	04	To do
06	Section AA: across Sandyhill Road frontage (E–W)	1:100	A3	00	To do

No.	Sheet	Scale	Size	Depends on	Status
07	Section BB: N–S through No.1 and the site	1:100	A3	00	To do
08	Building-line study (east and west neighbours)	1:500	A3	00	To do
09	Proposed floor plans and roof plan	1:50	A3	option chosen	To do
10	Proposed elevations (four)	1:100	A3	09	To do
11	Street scene along Sandyhill Road	1:200	A3	00, 08	To do
12	Existing side elevation (and rear if windows face the plot) of No.1 with window schedule (position, size, room served)	1:50	A3	photos + 00	To do
13	Daylight sections: 25° lines to each No.1 window, existing vs proposed	1:100	A3	07, 12	To do
14	Overshadowing/sun-path diagrams (21 Mar, 21 Jun, 21 Dec)	1:200	A3	03	To do
15	Cut-and-fill plan with volume table	1:200	A3	04, 05	To do
16	Access, dropped kerb, two parking bays, visibility splays, bin and cycle detail	1:200	A3	03	To do
17	Tree and hedge constraints plan	1:200	A3	00	If trees affected

Reports (not drawings): BRE 209 daylight/sunlight report; NDSS compliance table; planning statement; preliminary biodiversity net gain note.

Sheets 03, 05, 09–11 and 13–15 should be produced for the option (A, B or C) chosen after the survey and the daylight tests. Do not draw A in full before sheet 13 shows whether it passes.

Assumptions and [TO BE SURVEYED] values

A. Values not supplied (all `[TO BE SURVEYED]`)

#	Item	Needed for point
1	Surveyed red-line boundary, frontage width, depth at each end, area	1, 2, 4
2	Spot levels/contours across plot, Sandyhill Road kerb and Cleethorpes Avenue levels	3
3	Road gradient along Sandyhill Road at frontage	3
4	Building-line offsets of neighbours from kerb/boundary (east and west)	4
5	Plot widths, ridge and eaves heights, roof types, materials of neighbours	6
6	No.1: footprint, side-wall position, distance to the boundary	2, 5
7	The two side windows: position, sill/head heights, size, glazing. Rooms served (reported by the owner, not yet photographed): ground floor = kitchen, first floor = bedroom (the second bedroom’s other windows, if any, unknown)	5
8	Eaves and ridge height of any proposed house, and FFL	3, 5
9	Retaining-wall heights, cut and fill volumes	3
10	Tree positions, species, canopy and root protection area (rear bushes)	8

#	Item	Needed for point
11	Existing habitats on site (for BNG baseline)	8
12	Intended occupancy; room areas and widths; total GIA for the chosen option	7
13	Purchase terms with Property Transactions (the applicant is interested in buying; not yet owner), price, budget, any covenant	8
14	Site history and use; any Council disposal papers (Property Transactions)	8
15	Pre-app reference number	letter
17	Boundary of No.1's back yard, how much garden would be left for No.1, and the position of No.1's rear windows (living room, kitchen back door)	2, 5
16	Visibility splay lengths and kerb details at the Cleethorpes Avenue junction	8

B. Assumptions made in this pack (confirm or correct)

#	Assumption	Basis	Risk if wrong
1	North is up	Aerial convention; not surveyed	Sunlight tests wrong
2	The house directly north of the plot, at the south end of the Cleethorpes Avenue terrace, is No.1	Aerial shows a terrace labelled 7 and 3; No.1 is assumed to be the southern end house	Wrong windows tested
3	No.1's two side windows face south onto the plot; the upper one is visible above the hedge in the site photo and the lower (kitchen) one is behind the bush (owner	Officer's email: "side elevation" and "due south"	Test geometry changes

#	Assumption	Basis	Risk if wrong
	confirmed from the photo)		
4	The earlier plot (about 20.5 × 9.3 m) and house (8.2 × 6.8 m, 110 m² GIA) are concept estimates, not measured	Earlier sheets	Do not repeat them in the application
5	The officer's "properties to the east of Sandyhill Road" may mean Nos. 52/54 across Cleethorpes Avenue or the adjoining houses to the west (house numbers on the aerial, 56–60, do not match the Street View label of 113 Sandyhill Rd, so confirm the addresses)	Aerial	Wrong building line
6	A 9.3 m² bedroom is a single (7.5 m² minimum). 4b5p therefore needs one double (11.5 m², 2.75 m wide) plus three singles	NDSS	Occupancy label rejected
7	No.1 is an end-terrace 2-bedroom house owned by the user; side windows serve the kitchen (ground) and a bedroom (first). The photo shows one first-floor two-light window; the ground-floor one is hidden by the hedge	Owner's statement and photo	Wrong room weighting in BRE tests
8	Kitchen has other light from the living room and the back door glazing (owner's statement; to be confirmed	Owner	Test results change

#	Assumption	Basis	Risk if wrong
	with photos). The bedroom has no other window: the side window is its only light (owner's answer, "no"; confirm)		
9	Proposed house sits on the west (left) side of the plot, leaving the land beside No.1's side wall as garden/parking; the land to its left is back yards of neighbouring houses	Owner's layout idea	House may not fit the narrower west end of the plot; overlooking and overshadowing of the west neighbours not yet tested
10	Policies and thresholds in `5-technical-appendix.md` are named from memory	–	Check against current documents

11 | SUPERSEDED: scheme is now a two-storey 2b4p house (see appendix). Earlier: 4 bedrooms. Persons assumed 5 (4b5p, 97 m²) because bedrooms 2–4 are single size; 6 persons would need two doubles and 106 m² | Owner's answer | Space standard fails |
12a | CORRECTED: No.1's garden is NOT part of the site and will not be built on. The red line stays on the Council's plot only. The garden's length (end of No.1 to the timber fence) is used only as a measuring reference for the plot | Owner's clarification | Red line wrong if garden were included |
12 | (Withdrawn) The idea of adding No.1's back yard to the red line is dropped | Owner | – |
13 | The owner does not need a garden; only parking at the front. Private outdoor space may therefore be limited to a small yard, balcony or none | Owner | Officer may object to a family house with no outdoor space |
14 | Two front parking spaces wanted (taken as two bays side by side served by one dropped kerb). Bay size assumed 2.5 × 5.0 m; Council's size and crossover width not verified | Owner | Forecourt may be too shallow; highways may refuse |

B2. No.1 Cleethorpes Avenue is owned by the user (new)

Effect	Detail
Evidence	You can photograph and measure the two side windows from inside and outside, and say what rooms they serve (rows 6–7 above). Ask the surveyor to include them.

Effect	Detail
Hedge	If the hedge between the plot and No.1 is on your land, it is outside the red line and under your control; the surveyor and title will show this.
Amenity	Your consent helps with rights of light and party-wall disputes, but planning still assesses the harm to any future occupier. It will not bind later owners or tenants.
Options	Alter or relocate the side windows, or add other light to the rooms. If No.1 is a single house this is often permitted development, but check whether it is flats or has an Article 4 direction.
Forms and honesty	Declare the interest to the Council. A connection between the applicant and the owner of No.1 should be stated openly in the letter and in any application. Certificate B is still needed for the plot.
Conflict	Ask whether the Council's sale terms give you any first right, or restrict use.

C. Questions for you

0. When you can, measure the length of No.1's garden (end wall to the timber fence); the surveyor can use it as a reference. Not needed urgently.

1. The photo also shows a small window on the wall to the right of the gable, near the downpipe. What room does it serve? (If it is the bedroom's, the bedroom has another window.)

2. Have Property Transactions agreed terms, or is the sale conditional on planning? (The email shows you are interested in buying; you do not own the land yet.)

3. Have you got, or can you commission, a topographical survey?

4. Can you photograph No.1's side windows (outside) and say what rooms they serve?

5. How many people is the house for?

6. Are you the applicant, or connected to her? Is No.1 lived in by you, or let (and is it one house or flats)?

7. Do the kitchen and the bedroom have any other windows (front or rear)? If not, the side windows are their only light and the tests will be harder to pass.

8. What is your budget for survey, architect and daylight report?

Could this be an HMO? HMO vs 2-bed house

See `layouts-2bed-vs-hmo.svg` / `.png` for notional layouts (concept only, not fitted to the site).

Short answer

An HMO could be proposed, but I would not expect it to help. Everything the officer is worried about (light to No.1, building line, slope, parking) gets harder when more unrelated adults live in the same footprint, and the Council already says it is “yet to be convinced”. It is also a different application to describe honestly: it must say what use is intended.

Facts to check (not verified; confirm with Manchester City Council)

- A small HMO (3–6 unrelated people sharing) is use class C4; more than six is sui generis. A new-build house is C3 unless it is applied for as an HMO. Changing C3 to C4 is normally permitted development, **unless an Article 4 direction removes it**. I do not know whether M9 8JT is covered. Ask the Council.
- Do not build as a house with a plan to convert quietly: declare the intended use.
- Licensing: an HMO for five or more people from two or more households needs a mandatory licence. The Council may have additional licensing for smaller HMOs. Check.
- Standards: the national minimum licensing bedroom sizes are 6.51 m² for one adult and 10.22 m² for two. The Council has its own amenity standards for kitchens, bathrooms and shared rooms (not checked).
- Parking, bins, noise and cycle storage are scrutinised more for an HMO.

Comparison

	2-bed house (2b4p)	HMO (4 people)
Use class	C3	C4 (declare it)
Floor area in the notional layouts	about 80 m² (NDSS minimum 79 m²)	about 80 m²
Bedrooms	2 doubles, each at least 11.5 m²	4 single, about 7.4–11.5 m² (meets 6.51 m² licensing minimum; most are below 7.5 m²)

	2-bed house (2b4p)	HMO (4 people)
Impact on No.1	same footprint and height	same footprint; more people means more use of windows, noise, bins
Parking and bins	one space and normal bins	officer and highways likely to want more
Outdoor space	small yard or none (your wish)	same, but more occupiers
Planning risk	high (slope, building line, daylight)	higher (same plus Article 4, amenity, licensing)
Income	one letting or a sale	rooms let separately, usually more rent
Recommendation	**lead scheme**	only if the Council confirms no Article 4 and accepts it in principle

What to ask the officer

1. Is the site within an Article 4 direction for HMOs?
2. Would the Council consider a small HMO here at all, or only a family house?
3. What parking and amenity standards would apply?

Technical appendix: methods, policy references and options

No site measurements appear here. Anything site-specific is `[TO BE SURVEYED]`.

Point 3 – Levels, cut and fill

- Surveyor to supply a ground model (spot heights on a grid of 2–5 m plus the road kerb, No.1's threshold and DPC levels).
- Cut/fill: for each grid cell, (existing level − formation level) × cell area. Sum cut and fill separately. Report net import or export. Add foundation and topsoil strip. Bulking factor: [TO BE SURVEYED / ENGINEER].
- Honest test: if the difference between the highest and lowest corner is [TO BE SURVEYED] and the retaining wall needed is more than [ENGINEER'S THRESHOLD], say so in the letter.
- Design response if the slope is substantial: split-level or stepped plan following the contour, FFL set at the mid-point to balance cut and fill, retaining walls kept away from No.1's boundary.

Point 4 – Building line

Measure the front wall of each neighbour from a fixed datum (the back of footway). Draw the line across the plot. Then: aligned depth = plot depth − (offset between the proposed and aligned fronts). Minimum footprint per floor from NDSS GIA ÷ number of storeys, plus wall thickness (GIA is measured internally). Examples: 2-storey 3b5p (93 m²) needs at least 46.5 m² per floor plus walls; single-storey 2b3p (61 m²) needs at least 61 m² plus walls.

Point 5 – BRE 209 (3rd edition, 2022) tests

1. **25° test:** in section perpendicular to the window, from the centre of the lowest window (confirm height from survey), the obstruction angle is atan((eaves − window centre) ÷ distance). Passes if no more than 25°, i.e. (eaves − window centre) ÷ distance ≤ 0.466.
2. **VSC:** passes if the window has at least 27% or at least 0.8 times its former value.
3. **Daylight distribution (NSL):** needs the room layout behind each window.
4. **Sunlight (APSH)** for windows facing within 90° of due south: at least 25% annual probable sunlight hours, including at least 5% in winter (21 September – 21 March); a loss is noticeable if it falls below those and falls by more than 4 percentage points and below 0.8 times former.
5. **Overshadowing of gardens:** at least 50% of the amenity area should get 2 hours of sun on 21 March.

- Windows facing south onto the plot are the most sunlit, so the loss is likely to be greater than for a north-facing window. Bathrooms, stairs and landings are given less

weight than living rooms, kitchens and bedrooms; the room use matters.
- If tests fail: reduce eaves height, move the house away from No.1, reduce footprint, then re-test. Rights of light and party wall matters are civil, not planning, but can stop a build.
- Do not state “no harm” unless the figures show it.

Point 6 – Character analysis (template)

Property	Storeys	Eaves/ridge	Roof	Materials	Plot width	Front set-back
No.[ ]	[TO BE SURVEYED]					

Point 7 – Space standard (Nationally Described Space Standard, 2015)

Minimum GIA (m²):

Type	1 storey	2 storey	3 storey
2b3p	61	70	–
2b4p	70	79	–
3b4p	74	84	90
3b5p	86	93	99
4b5p	90	97	103
4b6p	99	106	112

Bedrooms: single at least 7.5 m² and 2.15 m wide; double at least 11.5 m² and 2.75 m wide (and at least 2.55 m for the second double); one double counts 2 people, a single 1. Built-in storage: 2.0 m² (2b), 2.5 m² (3b), 3.0 m² (4b). Headroom 2.3 m over at least 75% of GIA. (Check these against the standard before use.)

Room table to fill:

Room	Required	Proposed	Width	Pass?
Bed 1 (double)	11.5 m², 2.75 m	[ ]	[ ]	
Bed 2	7.5 m² (single) / 11.5 m² (double)	[ ]	[ ]	
Bed 3	as above	[ ]	[ ]	
Storage	per type	[ ]	–	
Total GIA	per type above	[ ]	–	

Occupancy rule: the earlier concept had Bed 2–4 at about 9.3 m² (singles). With one double and three singles it is a 4b5p (97 m²); it cannot be 4b6p.

Point 8 – Planning statement: policy references (verify before relying on any)

- **NPPF** (current version; confirm paragraph numbers): chapter 5 (delivering a sufficient supply of homes), chapter 11 (making effective use of land), chapter 12 (achieving well-designed places), chapter 15 (natural environment).
- **Manchester Core Strategy (adopted 2012):** SP1 (spatial principles), H1 (overall housing provision), EN1 (design principles), EN9 (green infrastructure), EN15 (biodiversity and geological conservation), T1 (sustainable transport), DM1 (development management). **Unsure:** exact DM1 criteria wording and any parking standard; check the document. The Council has a Local Plan under review; confirm its status.
- **Supplementary guidance:** the Council's "Guide to Development in Manchester" SPD (2007) – **unsure whether still in force**.
- **Biodiversity net gain:** Environment Act 2021 and Schedule 7A of the Town and Country Planning Act 1990, 10% mandatory since February 2024 (small sites from April 2024); check whether the site is exempt and what the baseline habitat is (grassland and bushes).
- **Highways:** drop-kerb approval, visibility at the Cleethorpes Avenue junction, parking provision for the final bedroom count – ask the highways officer.
- **Ownership:** Council-owned land is disposed of via Property Transactions. Planning permission is separate from the right to buy the land. Because the land is not yet yours, a full application would need Certificate B with notice served on the Council as owner.

Options

	A: as proposed (2-storey, 4b)	**B: reduced house (2–3b, lower ridge, pushed away from No.1)**	**C: single storey / no development**
Point 3 slope	Largest footprint and cut; most retaining	Smaller footprint; can step with slope	Smallest earthworks; none if no development
Point 4 building line	Likely needs depth the plot may lack	Sized to the aligned line	Easiest to align
Point 5 No.1	Highest risk of failing 25° and APSH tests	Better; must be tested	Lowest height, best chance of passing; none if no build
Space standard	4b5p needs 97 m²	2b3p (1 storey) 61, 3b4p (2 storey) 84	2b3p 61 or 3b4p 74
Pros	Most accommodation, best value	Realistic compromise	Lowest planning risk
Cons	Officer already unconvinced; likely refusal	Lower value; may still fail point 5	Little or no return; land may then go unused

Recommendation (provisional, until the survey and tests exist): take B to the second pre-application, with C as the fallback. Do not take A unless sheet 13 shows it passes. If the Council still objects: ask for the reasons in writing; ask whether a redesign could overcome them; consider a paid formal pre-application or a planning application (right of appeal after refusal); consider other uses for the land (garden/amenity purchase, parking) with the Council's Property Transactions team.

Site photo observations (photo of the plot from the Sandyhill Road footway; qualitative only)

No heights or distances are read from the photo; all are `[TO BE SURVEYED]`. - The plot is a raised, domed grass mound behind a brick retaining wall with a metal handrail, then the footway. The wall's coping steps down towards the right of the photo, so the ground falls that way. This supports the officer's point 3: building would need the mound cut back or the wall rebuilt, and the wall is existing Council structure whose height, condition and ownership need checking. - Tall hedge and shrubs run along the back of the plot, in front of No.1's gable. Who owns and maintains them is unknown. They screen the lower part of No.1's side wall, so a ground-floor window there cannot be seen. The photo shows one first-floor two-light window in the gable. The officer says there are two, so the other must be confirmed (probably ground floor, behind the hedge). - On the footway at the left of the plot are a utility cabinet and a bin. Any new driveway would need to avoid, or relocate, services and cross the retaining wall and a raised footway. - A tower block and a house with a roof of solar panels are visible beyond the plot. Neither is a precedent for a two-storey house of this size on a corner, but both belong in the street-scene analysis.

Occupancy update: 4–5 bedrooms

- 4b5p two-storey needs at least 97 m² GIA (about 49 m² per floor plus walls).
- Any five-bedroom type needs more than 4b5p; check the figures in the Nationally Described Space Standard before quoting them.
- A larger house makes points 3–5 harder. Say plainly in the pre-application that this size is the hardest case for the plot, and consider asking the officer about a three-bedroom alternative.

No.1 side windows: rooms served (owner's statement)

- Ground floor: kitchen. First floor: bedroom (the two-light window in the photo).
- BRE 209 counts kitchens and bedrooms as habitable rooms; living rooms, kitchens and bedrooms carry more weight than bathrooms or landings. A kitchen's daylight and a bedroom's sunlight are both tested.
- If either room has no other window, the side window is its only light, so the loss is more significant. Photographs of each room's windows are needed.

Layout idea: house on the west (left) side of the plot

- A house kept to the west of No.1's gable is south-west, not directly south, of the side windows. That helps the 25° and VSC tests, because the nearest part of the new wall

is further from the windows, but it does not remove the need to test. A south-west building can still cut winter afternoon sun to south-facing windows (APSH test).
- The kitchen has other light (living room and back door glazing), which lowers the weight of any loss to the side window. Whether the bedroom has another window decides whether its loss is critical.
- Side effects to test: the plot may be narrower at its west end, so check the buildable width and the building line (point 4); then the effect on the neighbours on the left (privacy, overshadowing of their back yards, side windows). A gap beside No.1 kept as garden or parking is a useful buffer.
- Draw the house in two positions on sheet 03 (west and centred) with the distance to No.1's gable dimensioned, then run sheet 13 on both.

Update: the bedroom's side window is its only window

- BRE 209 gives bedrooms less weight than living rooms and kitchens, and sunlight is mainly tested for main living rooms. But with no other window, any loss of daylight to the bedroom is a loss of all its light, so the VSC test and the room's daylight distribution need to be run and reported honestly.
- The design must keep the new house clear of the 25° line from the centre of this window, or show by calculation that the loss is within BRE limits. If it cannot, reduce height, reduce the footprint, or increase the gap. Alternatively, the owner could add or change a window to this bedroom (check permitted development and any Article 4 direction).

Decision: 4 bedrooms

- 4b5p two-storey: at least 97 m² GIA, about 49 m² per floor plus walls. 4b6p: 106 m².
- Test this first: 4 bedrooms on the west side of the plot, lower ridge, building line from the survey, a gap beside No.1. Three outcomes after survey and tests: it fits and passes (go to the second pre-application); it fits but fails sheet 13 (lower the ridge or reduce footprint); it will not fit the west end at the building line (fall back to Option B, a 2–3 bed house).
- Tell the officer plainly that the four-bedroom house is the hardest case for points 3–5.

Using No.1's back yard (to the west) for the house

- Benefit: more width and depth than the shallow plot, which may let a 4-bedroom house fit at the building line.
- Risk 1 (important): No.1's rear faces west onto that yard. The kitchen's other light (back door glazing) and the living room windows face it. Building there could cut the light that made the kitchen acceptable. So test the rear windows as well as the two side windows, and keep the house clear of the 25° line from each.
- Risk 2: the officer may treat it as garden/backland development. Check the NPPF policy on residential gardens and the Manchester guidance (wording not verified), and the privacy distances between the new house and No.1's rear windows. Keep a usable garden for No.1 (2-bed house; size [TO BE CONFIRMED against Council guidance]).
- Risk 3: the red line must then include part of your own garden. Certificate A applies to land you own, B to the Council's plot; both parts need to be shown on the location plan.

- Neighbours west of the yard (the gardens and houses beyond) need their privacy and light checked.
- Add to the drawing schedule: sheet 12 to include the rear elevation of No.1, and sheets 02-03 to show the extended red line and No.1's remaining garden.

Street View screenshot (Aug 2025) – hedge and wall

- Shows a very tall, dense evergreen hedge on top of an old low brick wall, with the end of a house behind on the left. Height, ownership, species and the viewpoint are not known (`[TO BE SURVEYED]`).
- Google labels the house shown "3 Cleethorpes Ave". Google labels are unreliable, but confirm from title and the Council that the house beside the plot is No.1.
- BRE 209 normally ignores trees and hedges, so the daylight baseline will probably be taken as if the hedge were not there. Do not argue that the hedge already blocks light to the kitchen window.
- If the hedge is removed for the house: add it to the tree/hedge survey (sheet 17), the biodiversity net gain baseline and a nesting-bird check. If it is kept, it may restrict where the house can go.
- The old brick wall may be a retaining wall; check its condition and who owns it.

Street View screenshot from Sandyhill Road (Aug 2025, labelled "113 Sandyhill Rd")

Qualitative only; no dimensions are read from it. - Plot: a grass bank behind a low brick wall with a brick-on-edge coping; the ground appears to rise from the wall towards the back of the plot. This supports the officer's point 3. The wall steps down along the kerb as the road falls towards Cleethorpes Avenue. - A street light column stands in front of the wall. It affects where a driveway or dropped kerb could go (highways to confirm the cost and the Council's consent to move it). - A timber fence and shrubs mark the west (left) end of the plot; the boundary owner is unknown. - The gable of the house behind shows the two-light first-floor window and a ground-floor window partly behind shrubs, consistent with the owner's statement. - Character (point 6): neighbouring houses are two-storey red brick with pitched roofs and some gable ends facing the street, so a brick, pitched-roof house is consistent with the area. Record roof pitch, eaves and ridge heights, and set-backs from the survey.

Street View screenshot looking along Sandyhill Road (building line)

Qualitative only; the survey must measure everything. - The houses on the left (west of the plot) are two-storey semi-detached, brick and render, with pitched roofs and solar panels. Their fronts are set back from the footway behind raised front gardens and a low brick wall. The plot's frontage wall continues the same wall line. - This supports the officer's point 4: a house built near the plot's wall would stand well forward of those fronts. Aligning with them pushes the house back up the bank, so the buildable depth, the cut and the retaining wall all increase (points 3 and 4 interact). A 4-bedroom house may not fit. - A large shrub sits on the boundary with the west neighbour, and a timber fence stands at the back of the plot. Ownership is unknown. - The addresses of the west neighbours need confirming. The Street View label (113 Sandyhill Rd) does not match

the house numbers on the aerial (56, 58, 60). - For the street scene (point 6): the neighbours' ridge and eaves heights and the front garden levels must be surveyed so the new house can be drawn to scale beside them.

What the photos show of No.1's windows (visual reading only)

- Two windows are stacked one above the other on the gable: a two-light window at first floor and a ground-floor window directly below it, partly hidden by shrubs. This matches the owner's statement (bedroom above, kitchen below).
- A smaller window appears near the left corner of the gable in the Street View images. Its room is unknown (possibly stairs or landing); ask the owner.
- Sizes and heights cannot be taken from these photos because of perspective and the shrubs. Use the surveyor's measurements. A straight-on photo of the gable from the footway, with a tape or a 1 m rule held against the wall, would let the surveyor check the sizes quickly.

Garden between No.1's gable and the timber fence (owner's statement)

- The photos show a timber fence at the back of the plot, near No.1's gable. The owner says the garden of No.1 runs from the end of the house to that fence and that this length can be used for the house.
- A fence is not proof of the legal boundary. Get the Land Registry title plan for No.1 and have the surveyor plot it with the Council's plot.
- If the house is built partly on this garden, the red line includes it, and the earlier risks apply: loss of garden for No.1, light to No.1's rear windows, and the officer's view on garden development.
- Use the owner's tape measurements only as a first estimate; draw nothing at scale until surveyed.

Desk check from the aerial image (rough; NOT for submission)

Method: the aerial has no scale bar, so I used the parked cars (assumed about 4.3 m long) as a ruler. Error is probably 25–30% or more. Replace every figure with the survey. - Plot frontage to Sandyhill Road: roughly 20–25 m. Depth from the kerb to the rear boundary: roughly 8–12 m, deepest at the east (Cleethorpes Avenue) end and shallowest at the west end. - Neighbours' front walls to the west: roughly 6–7 m back from the kerb. - Result: the neighbours' building line, if extended across, passes through the rear part of the plot. At the west end almost no plot lies behind it; at the east end more does, but that is next to No.1's gable and windows. So aligning to the building line leaves a small wedge, which would not hold a 4-bedroom house (about 49 m² per floor plus walls). - This is why using No.1's garden to the north-west matters: the house needs that extra depth to sit on the building line. It also moves the house towards No.1's rear windows and the garden's other boundaries, so those tests become critical. - If the survey agrees, the realistic

choices are: a 4-bedroom house using part of No.1's garden, with its light, privacy and garden-size tests passing; a smaller house; or ask the officer to accept a building line forward of the neighbours (unlikely, given her comment).

CORRECTION: no building on No.1's garden

The owner has clarified that the house will not be built on No.1's garden. This replaces the sections "Using No.1's back yard" and "Garden between No.1's gable and the timber fence" above. - The red line stays on the Council's plot. No.1 keeps its whole garden, so there is no garden-loss or Certificate A issue, and No.1's rear windows are not built against. - The garden's length (end wall of No.1 to the timber fence) is used only as a reference for the plot's length along Sandyhill Road. The surveyor should measure it. - The desk check above therefore stands without the garden: the neighbours' building line leaves only a small wedge of the plot, and a 4-bedroom house probably cannot sit on that line. The choices are a smaller house on the line, or a 4-bedroom house forward of the line with a strong justification (unlikely to satisfy the officer), or Option C. Decide after the survey.

No garden, parking at the front (owner's wish)

- Helps the fit: no rear garden is needed, so the house can use all of the plot behind the building line, and the area in front of the line becomes the parking forecourt. This uses the space that aligning to the building line removes.
- Planning risk: the officer and highways will still look at outdoor space for a family house (check the Council's guidance; I have not verified the wording or any minimum size) and at parking for a 4-bedroom house. Say plainly why no garden is wanted, and consider a small private yard, balcony or roof terrace, bin and cycle storage.
- Parking: the earlier concept used one 2.5 × 5.0 m space; confirm the Council's bay size and number of spaces for a 4-bedroom house. The street light, the utility cabinet, the kerb and the wall affect where a drive can go. Any drive needs a dropped kerb approved by highways and a gradient the highway authority accepts (limit not verified).
- Levels: a forecourt near footway level means cutting the bank back and rebuilding the wall; this affects cut and fill (point 3). Hardstanding also removes grassland (biodiversity net gain baseline) and adds surface water: consider permeable paving.

SCHEME CHOSEN FOR THE SECOND PRE-APPLICATION (supersedes the 4-bedroom decision)

Chosen at the owner's request to propose whatever is most likely to be accepted. No approval is guaranteed. - **House:** two-storey, 2 bedrooms, 4 persons (2b4p): at least 79 m² GIA, so about 40 m² per floor plus walls (derived from the standard, not measured). Brick, pitched roof, ridge no higher than the west neighbours' [TO BE SURVEYED]. - **Siting:** west end of the plot, front wall on the neighbours' building line, gap left beside No.1 so the house is south-west of its windows, not directly south. Front forecourt for parking. - **Why this is the best chance:** it answers the officer's points as far as the evidence allows. It needs a small footprint (building-line wedge), keeps height and mass in line with the semis (character), sits away from No.1's windows (daylight) and avoids a

big retaining structure. - **Not guaranteed:** the bedroom's side window is its only light, and the slope and window tests are unmeasured. If the survey or sheet 13 fail it, use the fallback: single-storey 2b3p (61 m² on one floor), or no development. - **Why not the 4-bedroom house:** it needs about 49 m² per floor plus walls on a small wedge, with a large mass beside No.1; the officer already doubts the site. I have not used it as the lead scheme.

Two front parking spaces (owner's request)

- Layout: two bays side by side, about 5 m wide (2 × 2.5 m) and 5 m deep, plus a dropped kerb; the house stays on the building line. Tandem bays would need about 10 m depth, which the plot does not have, so side by side is the only layout I have drawn.
- Depth check (from the rough desk estimate only): the neighbours' fronts are roughly 6–7 m back from the kerb, and the footway takes part of that. So a 5 m deep bay may not fit in front of the line; a car overhanging the footway will not be accepted. The survey decides. If it is short, the house sits further back (more cut into the bank) or one space is dropped.
- One crossover for two bays is easier to get approved than two. Highways decides width and position (not verified). The street light column, the utility cabinet and the kerb must be avoided or moved.
- Corner: the plot is next to the Cleethorpes Avenue junction. The drive nearer the junction gives highways visibility questions; the drive further west is safer for visibility but puts the house nearer No.1 or reduces the gap. Highways must say which they prefer.
- Gradient and surface: the forecourt needs a gradient highways accepts (limit not verified); the bank must be cut back and the wall rebuilt. Use permeable paving.
- Planning gain: two spaces answer the likely highways concern better than one.

Drawings and visual added (notional)

- `layouts-2bed-vs-hmo`: floor plans rotated so the long side (7.3 m internal) faces the street and the block is 5.5 m deep, because the plot is shallow.
- `elevations-notional`: front and side elevations of a two-storey house (assumed 5.0 m eaves, 35° pitch, about 7.2 m ridge, about 8.0 × 6.2 m outside). All values are design assumptions.
- `visual-illustrative`: a diagrammatic view from the south-east. Illustration only, not for the application.
- Siting warning: my rough aerial check found little plot depth behind the neighbours' building line at the west end, so the house probably cannot sit at the extreme west end. In the visual it is placed mid-plot. The survey decides the position, and a house nearer No.1 would need the daylight tests to pass.